

CODE

Elections

Draft for member review | 29 September 2026

Plain language summary

One chief and four councillors, one of them an off-reserve seat, a vote for every elector, and removal by a 40 percent petition then a majority of votes cast. The election rule already in force stays in force until members replace it in the way that rule requires.

Working draft. Not adopted law. Do not run an election on this text. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose and authority

1.1 This code sets the election of the chief and councillors. It is a custom election code under Indian Act subsection 2(1), definition of council of the band, paragraph (d).

1.2 It does not apply if Indian Act section 74 applies, or if the First Nation is a participating First Nation under the First Nations Elections Act. For a participating First Nation, section 6 of that Act requires subsequent elections within the 30 days before the term expires, and subsection 28(1) sets a four-year term. Those sections, not this code, would govern.

Do not run an election on this draft. The election rule already in force governs until the electors replace it in the way that rule requires. A file marked proposed is not the current code.

Part 2. Voters, candidates, and the day

2.1 Every elector may vote for the chief, for the off-reserve councillor, and for each of the other three councillor positions, whether the elector lives on reserve or off reserve. There is no residency test for voting.

2.2 A candidate must be an elector. A candidate must not stand for more than one position in the same election. A candidate who is immediate family of the electoral officer is not eligible. The electoral officer must reject that nomination in writing within 2 days.

2.3 A person who is serving a sentence of imprisonment on nomination day is not eligible. A chief or councillor who, while in office, is sentenced to imprisonment for more than 30 consecutive days ceases to hold office on the day of sentence. This follows the idea in First Nations Elections Act paragraph 28(2)(a), which applies by its own words only to a participating First Nation. It is not a lifetime ban. A lifetime ban would be open to a Charter challenge, and this code does not use one.

2.4 The term rules and the fixed day are constitution sections 4.3, 4.4, and 4.5. Council must not change them.

2.5 Council is one chief and four councillors, one of whom is the off-reserve councillor, unless at least 120 days before election day the electors adopt a different number under the amendment rule. Abolishing the off-reserve position is a protected rule and needs the higher count in that part. The change applies to the next election, not to the sitting council.

2.6 The off-reserve councillor must ordinarily reside off reserve on nomination day. The nomination must say, in a signed line, where the elector ordinarily lives. The electoral officer must reject a nomination for that position, in writing within 2 days, if the line says the elector ordinarily lives on reserve.

2.7 An elector may challenge that residence line in writing within 5 days of the candidate list. The electoral officer must decide in writing within 5 days. The appeal body must decide an appeal of that decision within 7 days. If the appeal body finds the candidate did not ordinarily reside off reserve, votes for that candidate are not counted. If the finding comes after the count, that seat is vacant and section 2.8 applies.

2.8 The electoral officer must post a vacancy within 2 days of learning of it. If more than 180 days remain before the next election day, the officer must hold a by-election for that position within 45 days of the posting, on 21 days' notice. The same rules apply, including section 2.6 for the off-reserve seat. If 180 days or fewer remain, the seat stays vacant until election day. Council must not appoint a replacement. A council appointment is void.

Part 3. Electoral officer

3.1 The electors appoint the electoral officer by a majority of votes cast, at least 90 days before election day. The officer is not a member of council, not a candidate, not an employee who reports to council, and not immediate family of a candidate.

3.2 Council must not appoint the electoral officer. An appointment signed by council is void. If the electors have not appointed an officer by day 90, the appeal body must appoint one within 14 days and post the name the same day.

3.3 The officer controls the ballot, the voters list, and the count. Council must give the officer the Band List, a room, and a budget line within 7 days of appointment. If council does not, the officer must post that fact on day 8, and council honoraria stop on day 8 until the list and the funds are provided.

3.4 The officer must post a notice of election 60 days before election day. The notice must state the positions, the fixed day, how to get a mail ballot, and the nomination deadline.

Part 4. Nominations, ballots, and the count

4.1 Nominations close 30 days before election day, at noon, local time. A nomination needs two electors other than the candidate, and the candidate's written consent, filed with the officer by that hour. A late nomination is void.

4.2 The officer must post the candidate list within 2 days after nominations close.

4.3 Voting is by secret ballot. A mail ballot must be available to every elector who asks in writing by 14 days before election day. The officer must mail or otherwise send it within 3 days of the request. An elector may vote once for each position. A second ballot for the same position is rejected.

4.4 No person may offer money, goods, work, or any other valuable consideration to influence a vote. No elector may accept it. This code does not decide a criminal charge. A criminal investigation belongs to the police and the Crown. If the appeal body finds, on written reasons, that a candidate did this, the candidate is disqualified and must not be nominated for 5 years. The body must decide within 21 days of a complaint filed within 14 days of election day.

4.5 The officer must post the count within 1 day of the close of the poll. A tie is broken by a draw conducted by the officer in front of two electors who are not candidates, the same day, and the method must be written down.

4.6 A candidate may ask the officer for a recount in writing within 5 days of the posting. The officer must recount within 5 days of the request and post the result the same day.

Part 5. Disputes

5.1 An elector may contest the election by a written complaint to the appeal body within 14 days of the posted count, on the ground that a breach of this code is likely to have changed the result.

5.2 The appeal body must decide in writing within 21 days. It may confirm the result or set the election aside and order a new election within 45 days. It must not install a candidate who did not receive the highest count.

5.3 This internal contest does not remove the right to go to court. Where the First Nations Elections Act applies, sections 30 to 35 of that Act are the contest path: an elector applies to the Federal Court or the superior court of the province, within 30 days after the results are announced, on the ground that a contravention is likely to have affected the result. This Part cannot replace those sections.

Part 6. Removal by the electors

6.1 An elector may ask for removal of the chief or a councillor by a petition filed with the appeal body. The petition must name the person, the office, the section of this set, the date, and the facts. It must carry the original signatures. The number of valid elector signatures must be at least 40 percent of the electors on the list the electoral officer certified at the last election under this code. If there has been no such election, the count is 40 percent of the electors on the Band List on the day the petition is filed.

6.2 The appeal body must check each signature against that list within 14 days and post the count of valid signatures. A signature that is not an elector, or is a duplicate, is not counted. If the valid count is below 40 percent, the petition fails. Those electors must not file another petition against the same person for 180 days unless it names a different section and different facts.

6.3 If the count meets 40 percent, the appeal body must direct the electoral officer to hold a removal vote. Notice of 30 days must go to every elector, on reserve and off reserve, and must include a mail ballot. Council must not cancel, postpone, or defund the vote. A resolution that does so is void. Each councillor who voted for it must not move a money resolution for 90 days.

6.4 The person named may file a written response within 14 days of the posted count. The electoral officer must post that response within 2 days. The ballot is yes or no on removal. Removal passes if a majority of the votes cast are yes. There is no second turnout test. The 40 percent petition is the screen. The officer must post the count within 1 day. The person leaves office at noon the next day. Section 2.8 then applies.

6.5 This vote does not decide a crime and does not replace a court. The public notice states the section and the count. It must not state an unverified accusation as a fact.

A removal vote with no minimum turnout can turn on a small number of ballots. That is the rule in this draft. The 40 percent figure is a draft figure. A lawyer should review it before members adopt it.

Part 7. Amendment

7.1 Council must not amend this election code by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

7.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

7.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

7.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, the off-reserve councillor position, the rule that one person must not commit more than \$10,000, the open invitation for a contract over \$25,000, the public mandate and the quarterly report, the removal petition, or the rule that members, not council alone, amend a law does not pass under 7.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

7.5 The electoral officer must post the count within 3 days.

Part 8. Review and coming into force

8.1 The appeal body must review this election code every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this election code.

8.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 7, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

8.3 this election code comes into force on the day after the electors approve it under Part 7. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

8.4 Where a law already in force sets its own replacement rule, this election code replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

8.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.